

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

CERTIFIT, INC., *Complainant*

v.

EVERGREEN SHIPPING AGENCY (AMERICA) CORP.,
AS AGENT FOR EVERGREEN LINE, EVERGREEN GROUP
D/B/A EVERGREEN LINE, *Respondent*.

DOCKET NO. 23-03

Served: July 21, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On July 18, 2023, the parties filed a joint status report and proposed discovery and briefing schedule (“JSR”). The parties state that they have only recently contacted the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”) and are weighing the feasibility of dispute resolution. The parties certify that they will make their initial disclosures on July 24, 2023. The parties are reminded that they should discuss the proportionality of discovery, the burden and expense of discovery, and the discovery of electronically stored information. 46 C.F.R. § 502.141.

Complainant CertiFit, Inc., requests an oral hearing in this matter in Washington, DC. Pursuant to 46 C.F.R. Section 502.62 (a)(5), “[t]he presiding officer will determine whether an oral hearing is necessary.” At this point in the proceeding, it is not clear that there is reason to conduct an oral hearing. Accordingly, the Complainant’s request for oral hearing is **DENIED**.

CertiFit, Inc., further requests an investigation of alleged violations of the Shipping Act. A request for investigation should be directed to the appropriate Area Representative and is not a proper remedy under the Commission’s Rules of Practice and Procedure at 46 C.F.R. § 502.62(a)(4)(iv). For further information, see <https://www.fmc.gov/resources-services/filing-a-shipping-act-complaint> (scroll to “resources”, “related links”, and click on “Exploring Commission Processes: The differences between contacting CADRS, filing a complaint and reporting violations”).

The parties have not followed the Commission’s Rules as set forth in the Initial Order regarding the timing of making initial disclosures, conferring with the Director of the Commission’s Office of Consumer Affairs and Dispute Resolution Services (“CADRS”), and filing required reports, and they are encouraged to review the Initial Order and the Rules to ensure they are in compliance going forward. 46 C.F.R. § 502.64(a)(1) and (2). Failure to follow the Commission’s rules may result in filings being rejected or adverse rulings.

The parties propose a discovery schedule which is reasonable but includes one date that falls on a weekend. Accordingly, the schedule has been adjusted.

The parties are hereby **ORDERED** to follow this schedule:

July 24, 2023	Initial disclosures due
July 24, 2023	Third-party subpoenas for production of documents or attendance at depositions due
August 1, 2023	Depositions begin
August 10, 2023	Initial discovery requests due
September 1, 2023	Complainant identifies expert witnesses, if any
September 15, 2023	Report(s) of Complainant's expert witnesses due
September 28, 2023	Deadline for submission of supplemental discovery requests
October 2, 2023	Respondent identifies rebuttal expert witnesses, if any
October 16, 2023	Report(s) of Respondent's expert witnesses due
October 20, 2023	Parties Complete Depositions
October 20, 2023	Close of Discovery
November 30, 2023	Complainant's Brief, Proposed Findings of Fact, and Appendix
January 8, 2024	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact and Appendix
January 22, 2024	Complainant's Reply Brief and Responses to Proposed Findings of Fact

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment*

Co., 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party’s] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party’s] Responses to [Party’s] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party’s proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party’s] proposed findings of fact with the hard copies of the response to [Party’s] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party’s] Appendix.** The evidence on which a party’s proposed findings of fact or response to another party’s proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;

d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge